

GORSUCH, J., dissenting

those cases have triggered an avalanche of persuasive academic support.⁹¹

What is more, the “underpinnings” of the separate sovereigns exception have been “erode[d] by subsequent decisions of this Court.”⁹² When this Court decided *Moore*, *Lanza*, *Bartkus*, and *Abbate*, the Double Jeopardy Clause applied only to the federal government under this Court’s decision in *Palko v. Connecticut*.⁹³ In those days, one might have thought, the separate sovereigns exception at least served to level the playing field between the federal government and the States: If a State could retry a defendant after a federal trial, then the federal government ought to be able to retry a defendant after a state trial. But in time the Court overruled *Palko* and held that the Double Jeopardy Clause *does* apply to the States—and, with that, a premise once thought important to the exception fell away.⁹⁴

Nor has only the law changed; the world has too. And when “far-reaching systemic and structural changes” make an “earlier error all the more egregious and harmful,” *stare decisis* can lose its force.⁹⁵ In the era when the separate sovereigns exception first emerged, the federal criminal code was new, thin, modest, and restrained. Today, it can make none of those of boasts. Some suggest that “the federal

⁹¹ See, e.g., Cassell, The Rodney King Trials and the Double Jeopardy Clause: Some Observations on Original Meaning and the ACLU’s Schizophrenic Views of the Dual Sovereign Doctrine, 41 UCLA L. Rev. 693, 708–720 (1994); Braun, Praying to False Sovereigns: The Rule Permitting Successive Prosecutions in the Age of Cooperative Federalism, 20 Am. J. Crim. L. 1 (1992); Amar & Marcus, Double Jeopardy Law After Rodney King, 95 Colum. L. Rev. 1, 6–15 (1995); King, The Problem of Double Jeopardy in Successive Federal-State Prosecutions: A Fifth Amendment Solution, 31 Stan. L. Rev. 477 (1979).

⁹² *United States v. Gaudin*, 515 U.S. 506, 521 (1995).

⁹³ 302 U.S. 319, 328–329 (1937).

⁹⁴ *Benton*, 395 U.S., at 794.

⁹⁵ *South Dakota v. Wayfair, Inc.*, 585 U.S. 162, 184 (2018) (internal quotation marks omitted).